

SENATE FLOOR VERSION

February 24, 2025

SENATE BILL NO. 927

By: Hicks

An Act relating to the state Medicaid program;
amending 63 O.S. 2021, Section 5030.1, which relates
to the Medicaid Drug Utilization Review Board;
modifying appointment procedure for certain members;
updating statutory language; and providing an
effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 5030.1, is
amended to read as follows:

Section 5030.1. A. There is hereby created within the Oklahoma
Health Care Authority the Medicaid Drug Utilization Review Board,
which shall be responsible for the development, implementation and
assessment of retrospective and prospective drug utilization
programs under the direction of the Authority.

B. The Medicaid Drug Utilization Review Board shall consist of
ten (10) members appointed by the administrator of the Authority as
follows:

1 1. Four physicians, licensed and actively engaged in the
2 practice of medicine or osteopathic medicine in this state, of
3 which:

- 4 a. three shall be physicians, each of whom is chosen from
5 a list of not less than ~~six~~ three names submitted by
6 the Oklahoma State Medical Association, and
7 b. one shall be a physician chosen from a list of not
8 less than two names submitted by the Oklahoma
9 Osteopathic Association;

10 2. Four licensed pharmacists actively engaged in the practice
11 of pharmacy, chosen from a list of not less than six names submitted
12 by the Oklahoma ~~Pharmaceutical~~ Pharmacists Association;

13 3. One person representing the lay community, who shall not be
14 a physician or a pharmacist, but shall be a health care professional
15 with recognized knowledge and expertise in at least one of the
16 following:

- 17 a. clinically appropriate prescribing of covered
18 outpatient drugs,
19 b. clinically appropriate dispensing and monitoring of
20 covered outpatient drugs,
21 c. drug use review, evaluation and intervention, and
22 d. medical quality assurance; and

23 4. One person representing the pharmaceutical industry who is a
24 resident of ~~the State of Oklahoma~~ this state, chosen from a list of

1 not less than two names submitted by the Pharmaceutical Research and
2 Manufacturers of America. The member representing the
3 pharmaceutical industry shall be prohibited from voting on action
4 items involving drugs or classes of drugs.

5 C. Members shall serve terms of three (3) years, except that
6 one physician, one pharmacist and the lay representative shall each
7 be initially appointed for two-year terms in order to stagger the
8 terms. In making the appointments, the administrator shall provide,
9 to the extent possible, for geographic balance in the representation
10 on the Medicaid Drug Utilization Review Board. Members may be
11 reappointed for a period not to exceed three three-year terms and
12 one partial term. Vacancies on the Medicaid Drug Utilization Review
13 Board shall be filled for the balance of the unexpired term from new
14 lists submitted by the entity originally submitting the list for the
15 position vacated.

16 D. The Medicaid Drug Utilization Review Board shall elect from
17 among its members a chair and a ~~vice-chair~~ vice chair who shall
18 serve one-year terms, provided they may succeed themselves.

19 E. The proceedings of all meetings of the Medicaid Drug
20 Utilization Review Board shall comply with the provisions of the
21 Oklahoma Open Meeting Act and shall be subject to the provisions of
22 the Administrative Procedures Act.

23 F. The Medicaid Drug Utilization Review Board may advise and
24 make recommendations to the Authority regarding existing, proposed

1 and emergency rules governing retrospective and prospective drug
2 utilization programs. The Oklahoma Health Care Authority Board
3 shall promulgate rules pursuant to the provisions of the
4 Administrative Procedures Act for implementation of the provisions
5 of this section.

6 SECTION 2. This act shall become effective November 1, 2025.

7 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
8 February 24, 2025 - DO PASS
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